

**PLACER COUNTY SUPERIOR COURT
FRIDAY, CIVIL LAW AND MOTION
DEPARTMENT 1
COMMISSIONER CHRISTINE S. DEHR
TENTATIVE RULINGS FOR JULY 24, 2026 AT 8:30 A.M.**

4. S-CV-0045236 RODRIGUEZ, JEFFREY v. JONES, GHAZALA

This tentative ruling is issued by the **Honorable Jeffrey S. Penney**. If oral argument is requested, it shall be heard on Friday, July 31, 2026, at 1:30 p.m. in Department 44.

Defendants Ghazala Jones and Daniel Jones Ex Parte Application for Stay of Enforcement of May 28, 2026, Attorney-Fee/Cost Order Pending Appeal and Waiver of Undertaking Under Code of Civil Procedure Sections 917.1 and 995.240

Preliminary Matters

The court accepts defendant Daniel Jones's joinder to defendant Ghazala Jones's ex parte application.

Ruling on Motion

On June 26, 2026, Defendants applied ex parte for the court to stay enforcement of its May 28, 2026, order granting plaintiffs' motion for attorney's fees and costs pending appeal and to waive the undertaking requirement. (Code Civ. Proc., §§ 917.1, 995.240.) The court issued an order on the ex parte application that set the matter for hearing for July 24, 2026.

Plaintiffs first argue they do not consent to any stay pending appeal and thus the court is unable to stay execution of the attorney's fees and costs order. (Code Civ. Proc., § 918.) However, defendants do not seek relief pursuant to Code of Civil Procedure section 918 and thus the procedures therein are inapplicable to the present application. (*Sarkany v. West* (2022) 82 Cal.App.5th 801, 809.)

Defendants instead invoke the stay procedures in Code of Civil Procedure section 917.1, which requires defendants, as the appellants, to post an undertaking to stay the enforcement of an order for the payment of money pending appeal. (Code Civ. Proc., § 917.1, subd. (a)(1).) Defendants' appeal of the court's order granting plaintiffs' motion for attorney's fees and costs constitutes an order for the payment of money and thus requires the posting of an undertaking to stay execution of the court's order pending appeal.

Code of Civil Procedure section 995.240, on the other hand, provides

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The court may, in its discretion, waive a provision for a bond in an action or proceeding and make such orders as may be appropriate as if the bond were given, if the court determines that the principal is unable to give the bond because the principal is indigent and is unable to obtain sufficient sureties In exercising its discretion the court shall take into consideration all factors it deems relevant, including but not limited to the character of the action or proceeding, the nature of the beneficiary, whether public or private, and the potential harm to the beneficiary if the provision for the bond is waived. (Code Civ. Proc., § 995.240.)

Defendants, as the moving parties, bear the burden to establish entitlement to waiver of the bond procedures. (*Burkes v. Robertson* (2018) 26 Cal.App.5th 334, 346.) Defendants must make two showings: (1) indigency and (2) inability to obtain sufficient sureties. (*Fuller v. State of California* (1969) 1 Cal.App.3d 664, 670–71; *but see Alshafie v. Lallande* (2009) 171 Cal.App.4th 421, 436, fn. 10.)

Defendants establish both requirements here. Defendants’ respective declarations filed in support of their application establish they have no cash or liquid assets available to them, are unemployed, and insufficient monthly incomes. Additionally, defendants’ respective declarations establish they are unable to obtain sufficient sureties due to their indigency and cannot borrow money from anyone to obtain sufficient sureties.

The court additionally considers defendants are elderly and ill and thus unable to obtain employment to obtain sufficient sureties. Further, the court considers that it granted defendant Ghazala Jones’s fee waiver request on December 10, 2025.

Accordingly, defendants’ application is granted. The court waives the undertaking requirement and stays execution of the court’s May 28, 2026, order granting plaintiffs’ motion for attorneys’ fees and costs pending appeal.